

26STCV10944 26STCV10944

County: los-angeles

Division: Civil Law and Motion

Department: 307

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Case Number: 26STCV10944 Hearing Date: August 6, 2026 Dept: 307

12 TENTATIVE RULING 9:15 a.m., August 6, 2026

SRGJAN

GJORGJEVIKJ v. ADRIANA BRAVO [26STCV10944]

DEFENDANT

ADRIANA BRAVO'S DEMURRER TO THE COMPLAINT

MEET AND

CONFER: UNCLEAR Defendant's

counsel fails to specify whether the parties met and conferred telephonically, by video conference, or in-person to comply with Code Civ. Proc. § 430.41 (Cohen Decl., ¶ 2.)

BACKGROUND:

Complaint alleges discrimination against police officer

TIMELINE:

Circa 2/2026: Defendant Adriana Bravo

("Defendant"), a police officer in the City of Torrance, cites Plaintiff Srgjan Gjorgjevikj ("Plaintiff") for an open container violation after Plaintiff is found drinking beer outside of his parked vehicle, where he had been living. During the interaction, Defendant allegedly tells Plaintiff to "get out of 'her city.'"

3/13/2026: Defendant returns to Plaintiff's

parked vehicle and has the vehicle towed on the basis that it was non-operable and could not be lawfully parked on the street.

3/17/2026: Plaintiff receives a Right to Sue notice from the California Civil Rights Department based on his discrimination complaint.

4/6/2026: Plaintiff files the Complaint in this action, apparently alleging a single cause of action for discrimination against Bravo.

5/13/2026: Defendant files a request for an automatic extension of her response deadline.

6/12/2026: Defendant files this demurrer. As of 8/5/2026, no opposition from Plaintiff has been received.

TENTATIVE

RULING: DEFENDANT ADRIANA BRAVO'S DEMURRER TO THE COMPLAINT is SUSTAINED with LEAVE TO AMEND.

DEMURRER

Defendant demurs to the entire Complaint pursuant to Code of Civil Procedure section 430.10, subdivision (e) and (f) on the grounds that Plaintiff fails to allege facts sufficient to state a cause of action and that the Complaint is fatally uncertain. In the Complaint, Plaintiff does not specifically identify any particular cognizable legal cause of action that he is asserting against Defendant. While Plaintiff's Complaint purports to state a claim for employment discrimination under the FEHA statutory framework, Plaintiff makes no allegation that he had an employer-employee relationship with Defendant to bring his discrimination and harassment-based allegations within the scope of FEHA. Alternatively, to the extent that Plaintiff is attempting to state a civil rights-based claim against Defendant, Plaintiff has not identified the specific statutory framework under which such claims are being asserted. Further, the Complaint is not entirely clear as to the basis for Defendant's purported wrongdoing. The allegations stated in the Complaint appear to suggest that Defendant was simply doing her job as a police officer in response to Plaintiff's unlawful activities, which he concedes in the Complaint itself.

Ultimately, the Court finds that the Complaint

is so uncertain that Defendant cannot reasonably respond to Plaintiff's claim(s). A plaintiff is required to "set forth in his complaint the essential facts of his case with reasonable precision and with particularity sufficiently specific to acquaint the defendant of the nature, source, and extent of his cause of action." (Elder v. Pac. Bell Tel. Co. (2012) 205 Cal.App.4th 841, 858, internal citation omitted.) At minimum, as to "[e]ach separately stated cause of action," pleaders must specify the number (e.g., "first cause of action"), the nature (e.g., "fraud"), the complainants and the defendants. (Cal. Rules of Court, rule 2.112). The "[...] failure to comply with rule 2.112 presumably renders a complaint subject to a ... special demurrer for uncertainty." (Grappo v. McMills (2017) 11 Cal.App.5th 996, 1014; see Williams v. Beechnut Nutrition Corp. (1986) 185 Cal.App.3d 135, 139.) Thus, Plaintiff must clearly identify the specific causes of action he is asserting against Defendant and assert the factual basis showing that the identified causes of action are legally cognizable.

Although it is not clear at this time whether facts exist to support any legally cognizable claim against Defendant for conduct that occurred in the course and scope of carrying out her duties as a police officer, California's policy favoring liberal amendment of pleadings supports the conclusion that Plaintiff should have the opportunity to amend his pleading.

Therefore,
Defendants' demurrer to the entire Complaint is SUSTAINED with LEAVE TO AMEND.
Any amendment must be filed within 20 days after notice.

Defendant Adriana Bravo to serve notice of ruling. This tentative ruling ("TR") shall be the order of the Court unless changed at the hearing and shall by this reference be incorporated into the Minute Order. TR emailed to the email addresses of plaintiff pro per and defense counsel and posted to court's website on 8/5/26 by 2 p.m.